



Appeal Decision

Site visit made on 11 August 2026

by A Wright BSc (Hons) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10th September 2026

Appeal Ref: 6011079

Moonshine Meadow, Cuckfield Road, Ansty, West Sussex RH17 5AL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Keith Deighton against the decision of Mid Sussex District Council.
 - The application Ref is DM/25/3108.
 - The development proposed is described as 'full application for a proposed 5 pitch settled Gypsy accommodation site including vehicular access permitted under DM/20/1277; revised application dealing with residual ecology and arboricultural matters further to appeal ref: APP/D3830/W/25/3362298'.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. A new National Planning Policy Framework (the Framework) was published on 17 August 2026 which replaces the previous version and the Planning Policy for Traveller Sites. I invited the Council and the appellant to consider whether the new Framework has relevance to this appeal and have taken account of the responses received in my decision.

Main Issues

3. The main issues in this appeal are whether the site would be a suitable location for the proposed development, having regard to:
 - the accessibility of services and facilities; and
 - policies concerned with development in areas at risk of flooding.

Reasons

Access to services and facilities

4. The appeal site lies in the countryside to the west of Cuckfield Road between Ansty and Hurstpierpoint. It comprises a paddock with a stable building in an area containing large dwellings set in substantial plots with open fields between. There is a gated access onto the highway. The proposed scheme is for five pitches providing accommodation for Gypsies.
5. Policy DP33 of the Mid Sussex District Plan 2014 – 2031 (adopted 2018) (DP) sets out criteria for assessing proposed new Gypsy sites. Amongst other things, this indicates that such proposals will be permitted provided the site is reasonably accessible to schools, shops, health and other local services and community

facilities. This broadly aligns with Policy HO12 of the Framework where it states that Traveller sites should be located to enable access to frequently used services, such as education, welfare and health services.

6. Whilst recognising there might be circumstances where development needs to be located in the countryside, Policy DP21 of the DP requires proposals to be located to minimise the need for travel. It also requires them to explore and take up opportunities to increase use of alternative means of transport to the private car, such as the provision of, and access to, safe and convenient routes for walking, cycling and public transport. This is consistent with Policy TR4 of the Framework which requires proposals to give priority first to walking, wheeling and cycle movements with neighbouring areas and second, so far as possible, to facilitating easy access to high quality public transport.
7. The proposed development would be located around 1.9km from Ansty, a small village with limited services including a petrol station with a convenience store, and around 4.7km from the town of Burgess Hill. The latter offers a range of services and facilities including retail, education, health, employment, and public transport links to London and Brighton.
8. A limited bus service (number 89) operates through Ansty between Horsham and Haywards Heath. Another bus service (number 100) runs between Horsham and Burgess Hill, with the nearest bus stop located around 1.2km south of the site. Both require walking along Cuckfield Road to access the bus stops.
9. As described in the previous appeal for Gypsy accommodation on this site¹, Cuckfield Road is an undulating road with a national speed limit. It has no pedestrian footways, cycle paths or street lighting. The local highway authority does not object to the current proposal and previously suggested that cycling is a potentially viable option for confident cyclists.
10. Nevertheless, I agree with the Inspector's reasoning in the previous appeal that the route would be unappealing for most people and that the public highway does not therefore offer safe and suitable access for pedestrians and cyclists. Thus, future occupiers of the proposed scheme would be heavily reliant on private vehicles to access facilities.
11. Policy HO12 of the Framework sets out criteria for the location of traveller sites. It states that they should be located so that they provide a settled base while recognising the extent to which traditional lifestyles can contribute to sustainability and may also mean that locations not well-related to existing settlements may be appropriate. They should also be located to enable access to frequently used services, such as education, welfare and health services. However, in this case there is no evidence that the lifestyle of future occupants would contribute to sustainability. Further, the site would not be reasonably accessible to the range of services identified by Policy DP33 of the DP and Policy HO12 of the Framework.
12. The appellant refers to many proposals for Gypsy sites allowed on appeal where Inspectors considered access to services and facilities, amongst other things. Nonetheless, in this specific case, which is considered on its own merits, given the distance to facilities and the nature of the route, the site would not meet the local and national policy requirements.

¹ Appeal ref: APP/D3830/W/25/3362298 'the previous appeal/proposal'

13. Consequently, I conclude that the site would not be a suitable location for the proposed development, having regard to the accessibility of services and facilities. In this regard, it would conflict with Policies DP21 and DP33 of the DP. It would also be contrary to Policy HO12 of the Framework.

Flood risk

14. Policy DP41 of the DP requires proposals to ensure development is safe across its lifetime and not increase flood risk elsewhere, considering a range of sources of flood risk. It requires particular attention to be paid to those areas that have experienced flooding in the past, and proposals should seek to reduce the risk of flooding by achieving a reduction from existing run-off rates. It sets out a preferred hierarchy of managing surface water drainage from development. This generally complies with policies for managing flood risk in the Framework, as set out below.
15. Policy F4 of the Framework identifies the types of applications which should be supported by a site-specific flood-risk assessment (FRA). In Flood Zone 1, this includes land which has been identified by the Environment Agency as having critical drainage problems and land identified in a strategic flood risk assessment or the flood map for planning as being at risk of flooding from any source, whether now or in the future.
16. Policy F7 of the Framework states that proposals should not present a risk from flooding to potential occupiers, users, or visitors, and should not increase flood risk elsewhere. Where development is proposed in a location known to be at risk from any form of flooding, now or in the future, it should be refused unless certain criteria are met. These include: ensuring development will be safe throughout its lifetime taking account of the vulnerability of its users; safely managing any residual risk, and including safe access and escape routes where appropriate; and demonstrating that flood risk will not be increased elsewhere. Mobile homes intended for permanent residential use are classed as a highly vulnerable use.
17. The Planning Practice Guidance (PPG)² outlines that an FRA is carried out to assess the flood risk to and from a development site, demonstrating how flood risk will be managed now and over the development's lifetime, taking climate change into account, and with regard to the vulnerability of its users. It sets out various objectives for FRAs, including establishing whether a development is likely to be affected by current and future flooding from any source, whether it will increase flood risk elsewhere and whether the measures proposed to deal with these effects and risks are appropriate. Amongst other things, the PPG states that the FRA should consider historic flooding records³.
18. The site is identified in Flood Zone 1 for fluvial flood risk, but the Environment Agency's (EA) records show that parts of Cuckfield Road are influenced by fluvial flooding associated with the River Arun. The Council also has records of historical fluvial flooding affecting the appeal site, Cuckfield Road and the surrounding area. Further, EA data indicates that parts of Cuckfield Road are affected by surface water flooding during a range of rainfall events. Indeed, the appellant's FRA indicates that land between the site and carriageway is within the surface water flood extent area. There are also historic records of surface water flooding along this road, and evidence of flooding having occurred at a neighbouring property.

² Paragraph: 020 Reference ID: 7-020-20220825

³ Paragraph: 080 Reference ID: 7-080-20220825

19. The proposal includes five mobile homes providing permanent accommodation, a use which is highly vulnerable to flooding. The proposed pitches would be located within an area of very low surface water flood risk (comparable to Flood Zone 1) under the present day and 2061-2125 climate change scenarios. However, the appellant's FRA fails to consider historic fluvial and surface water flooding and the potential for further such events on the safety of future occupants of the pitches.
20. In addition, the appellant's FRA does not assess the safety implications of flood risk for the proposal as set out in the PPG⁴. For example, there has been no consideration of the characteristics of a possible flood event such as the flood depth and velocity along Cuckfield Road. There has also been no assessment of the ability for residents to safely access and exit the site during an extreme flood event, and the impact of flooding on essential services such as emergency service access to the development. The proposed scheme would be reliant on Cuckfield Road for access, and in the absence of this information I cannot be satisfied that safe access and escape routes would be available for occupants in a flood event or that the development would be safe for its lifetime. This would conflict with Policy DP41 of the DP and Policy F7 of the Framework.
21. The proposal would introduce a driveway, parking spaces, mobile units and utility buildings onto existing undeveloped land. The appellant states that the development would utilise rainwater harvesting and a discharge off site to manage surface water drainage on the site. Nonetheless, no surface water drainage strategy, drainage calculations, confirmation of the proposed discharge hierarchy or other technical details have been provided to show how surface water from the proposed development could be effectively managed to meet the requirements in Policy DP41 of the DP.
22. Further, it is indicated that a package treatment plant would manage foul water drainage with water discharging to either a soakaway or into the adjacent watercourse. However, there is no technical information demonstrating the suitability of either discharge option, and other matters such as percolation testing, drainage field design and discharge calculations.
23. The appellant considers that surface water and foul drainage arrangements could be secured via pre-commencement conditions. Nevertheless, without further evidence on the detailed arrangements for these, I cannot be certain that surface water generated by the proposal could be managed sustainably throughout the lifetime of the development or that foul drainage could be managed without unacceptable flood risk consequences. This is in accordance with the findings of the Council's Flood Risk and Drainage Team. As such, pre-commencement conditions would not be appropriate in this case.
24. I acknowledge that the previous proposal was not refused by the Council nor dismissed by the Inspector on flood risk grounds. However, the Council has since adopted and updated its information checklist and guidance for flood risk and drainage. This requires the provision of sufficient information at application stage to demonstrate that flood risk and drainage can be appropriately managed in principle. This includes information relating to surface water and foul water drainage, site constraints, drainage hierarchy considerations and flood risk where

⁴ Paragraph: 005 Reference ID: 7-005-20220825

relevant. As such, there is a need for more information to be submitted with planning applications to address these issues than was previously the case.

25. Consequently, I conclude that there has been a failure to demonstrate that the site would be a suitable location having regard to policies concerned with development in areas at risk of flooding. This would be contrary to Policy DP41 of the DP and Policies F4 and F7 of the Framework.

Other Considerations

26. The Council accepts that as at 1 April 2025, it is unable to demonstrate a five year supply of Gypsy sites. In these circumstances, Policy S5 of the Framework states that development which would address an evidenced unmet need should be approved provided it meets the criteria in Policy HO12. If it does not fall within the categories set out in Policy S5, the development should only be approved in exceptional circumstances, where the benefits of the proposal would substantially outweigh the adverse effects, including in relation to promoting sustainable patterns of movement. Amongst other things, Policy HO12 requires the existing level of local provision and need for additional sites to be taken into account.
27. The Mid Sussex Gypsy and Traveller and Travelling Showpeople Accommodation Needs Assessment Update 2024 (GTAA) indicates a need for 21 permanent pitches (five for households that meet the national policy definition, 12 for households that do not meet the definition and four for undetermined households). The GTAA suggests a minimum of three pitches be delivered within the first five year period of 2024-2028.
28. The Council states that its existing commitments are currently expected to be delivered post year five. It does not give further detail on how the needs identified in the GTAA will be met, though I note that the draft District Local Plan 2021-2039 is still subject to examination and as such carries limited weight.
29. Consequently, from the evidence before me, there appears to be a shortfall in the current supply of Gypsy and Traveller pitches. The proposal would contribute towards the supply if it were to be occupied by Gypsies and Travellers. This is a benefit of the proposal which could be secured via an occupancy condition. Policy HO7 of the Framework states that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community.
30. Gypsies and Travellers have the protected characteristic of race under section 149(7) of the Equality Act 2010. The public sector equality duty (PSED) at section 149(1) of the Equality Act requires me to have due regard to eliminating discrimination, advancing equality of opportunity and fostering good relations. The lack of pitches indicates an inequality in housing opportunity for Travellers. Thus, the equality implications of the proposal weigh notably in favour of allowing the appeal.
31. The proposal would also make efficient use of the land and deliver biodiversity net gain. Given the modest size of the scheme, these points carry limited weight in favour of the proposed development.
32. Overall, the benefits of the scheme carry weight of a high order.

Other Matters

33. The Council did not find harm or development plan conflict in relation to several other matters, including character and appearance, living conditions, highway safety, and impacts on trees, landscape, protected species and heritage assets. Nonetheless, even if I were to agree with the Council on these points, the absence of harm would be a neutral matter which would not carry weight in favour of the proposed scheme.

Planning Balance

34. As adverse impacts, I have found that the site would be unsuitable for the proposed Gypsy accommodation having regard to the accessibility of services and facilities and the potential risk of flooding. The resulting conflict with Policies DP21, DP33 and DP41 of the DP would lead to a conflict with the development plan as a whole and with the Framework as set out above. Indeed, Policy F7 of the Framework indicates permission should be refused if its requirements are not met. The adverse impacts are very important matters weighing against the proposal.
35. I have identified several other considerations above, which together amount to weight of a high order in favour of the proposed scheme. However, the benefits of the proposal would not substantially outweigh the adverse effects. Accordingly, the exceptional circumstances required by Policy S5(4) of the Framework do not exist.
36. I accept that the prospect of alternative authorised sites becoming available remains uncertain given that the LP remains at examination. I have considered the option of granting permission for a temporary period, though I have no clear indication of what temporary period would be sufficient for the Council to adopt the LP, or for any future allocations to come forward other than its statement that existing commitments are expected to be delivered post year five. This requires a balancing exercise taking account the limited duration of any permission and any reasonable expectation of a change in planning circumstances by the end of the period. Nevertheless, the danger of flood risk is currently present and will not abate in the future, including during any temporary period.
37. Taking all this together, the material considerations do not clearly outweigh the harm arising from a limited period of occupation such as to justify a temporary permission.

Conclusion

38. The proposal conflicts with the development plan as a whole and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. The appeal should therefore be dismissed.

A Wright

INSPECTOR